

product doctrine they shall provide a privilege log or other like evidence to support their assertions. (C.C.P. section 2031.240, subdivision (c)(1).)

C.C.P. § 2030.300(d) mandates sanctions against a party or counsel who unsuccessfully opposes a motion to compel unless substantial justification exists. Sanctions are also authorized under C.C.P. §2023.030 for misuse of the discovery process as defined in C.C.P. § 2023.010. The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See C.C.P. §2030.290, subdivision (c).)

Generally, monetary sanctions are mandatory to parties who unsuccessfully defend against discovery motions, unless courts find substantial justification or other injustice. (E.g., *Foothill Properties v. Lyon/Copley Corona Assocs., L.P.* (1996) 46 Cal.App.4th 1542, 1557-1558.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.) “The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions.” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

“There is no requirement that misuse of the discovery process must be willful for a monetary sanction to be imposed.” (Cal. Civil Discovery Practice (Cont.Ed.Bar 4th ed. May 2009 update) § 15.94, p. 1440, citing C.C.P., § 2023.030, subd. (a); see 2 Hogan & Weber, Cal. Civil Discovery (2d ed. 2005) Sanctions, § 15.4, p. 15-8 [“Whenever one party's improper actions—even if not ‘willful’—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party” (fn. omitted)]; *Kohan v. Cohan* (1991) 229 Cal.App.3d 967, 971.)

While the court does not find substantial justification for Defendants/Cross-Complainants’ failure to initially provide verified valid objections or code-compliant responses, the court finds that the request for sanctions is excessive. This court does not have the benefit of knowing to what extent Defendants’/Cross-Complainants’ have already provided further responses or produced documents as the parties have provided the court with conflicting information as to this point. While the court is Granting the motion to compel despite representations that there is no need to because Defendants’/Cross-Complainants’ have already provided further responses, this point is disputed by Plaintiff/Cross-Defendant and Defendants/Cross-Complainants admit to not providing all requested documents. Even so, California Rule of Court 3.1348 permits sanctions under the Discovery Act in favor of a party who files a motion to compel discovery even when the requested discovery was provided to the moving party after the motion was filed. (See also California C.C.P. §2030.300, subdivision (d).)

Plaintiff/Cross-Defendant’s arguments were convincing and compelled this court to provide intervention and rule substantively on the motion. As such, the court orders Defendant/Cross-Complainants to pay sanctions in the amount of \$900 to Plaintiff/Cross-Defendant by January 30, 2026.

3. 9:00 AM CASE NUMBER: C23-01219

CASE NAME: ELVECIO MACHADO VS. GINO CARUSO

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET 1 AGAINST ELVECIO MACHADO
FILED BY: CARS TO GO TOWING, INC.

TENTATIVE RULING:

Defendant Cars to Go Towing, Inc.'s Motion to Compel Further Responses to Special Interrogatories (Set One); and for Sanctions is GRANTED in PART and DENIED in PART. The Court GRANTS requests for further responses and for monetary sanctions in the amount of \$950, both of which are due to Defendant by January 30, 2026. The Court DENIES the request to deem Plaintiff Machado's response invalidated and unverified and DENIES the request for issue and evidence sanctions.

Defendant propounded on Plaintiff Elvecio Machado Special Interrogatories with approximately 44 requests. Plaintiff provided only objections to 42 of the 44 requests, answered one and provided an objection but also provided a substantive answer to one.

Defendant's asserts that when Plaintiff responded with his attorney and co-plaintiff wife's names in response to Request No. 44, to identify each person that assisted in the preparation of the answers to all the preceding interrogatories this renders his responses unverified and invalid. This court rejects that argument. The question reasonably implies that the signatory should identify who "assisted" him in the preparation of the answers, which Plaintiff answered. This court does not find it unreasonable for the signatory to believe that the question only called for *who else* assisted and did not require the individual providing the responses to include themselves in the answer. The court therefore declines to find Plaintiff Machado's response invalidated and unverified.

The answer to each interrogatory must be "as complete and straightforward as the information reasonably available to the responding party permits." (California C.C.P. §2030.220(a); *Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 590.) Objections must be justified with specific grounds set forth clearly in the response. (California C.C.P. §2030.240.) Boilerplate or unsubstantiated objections are disfavored by courts and may be sanctionable. (See *Korea Data System Co. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1516.) "If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (C.C.P. § 2030.220(b).) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (C.C.P. § 2030.220(c).) An answer is incomplete if it merely refers to other documents without summarizing them. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.)

Overbroad is a recognized objection if the breadth imposes an undue burden or the request is irrelevant to the subject matter. If unduly burdensome, the opposing party must show the amount of work required. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549-550, (see C.C.P. §§2017.020(a) and 2017.010, see also *Perkins v. Superior Court* (1981) 118 Cal.App.3d 761, 764-765.) Many of Defendant's requests for Special Interrogatories seek information as to the nature of the Plaintiff's claims, they do not seek to obtain compilations of evidence that appear to be non-existent.

Furthermore, when the requests focus on a single subject they are not considered compound. (["The rule should probably apply only where *more than a single subject* is covered by the question.] See

Clement v. Alegre (2009) 177 Cal. App. 4th 1277, 1291, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial, (The Rutter Group 2009), ¶ 8:979, p. 8F-21.)

Moreover, responses to the co-defendant's discovery requests may also be responsive to Defendant Cars-To-Go Towing, Inc.'s requests. *Carter v. Superior Court* (1990) 218 Cal. App. 3d 994, 997-998:

While the Civil Discovery Act of 1986, the Legislature has provided that although a party "may obtain discovery by one or more" of several methods, "[t]he court shall restrict the frequency or extent of use of these discovery methods if it determines either of the following: (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive. (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case" (§ 2019, subd. (b).) In addition, section 2025, subdivision (i), authorizes the court, "for good cause shown" to protect a party from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense," by ordering that "all or certain of the writings or tangible things designated in the deposition notice not be produced, inspected, or copied."

The superior court possesses considerable discretion to restrict burdensome or duplicative discovery. Nevertheless, Defendant Cars-to-Go, Towing, Inc. is entitled to responses to its own interrogatories. (C.C.P. §§ 2030.210(a) ["The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory . . ."]). Plaintiff's "duplicative" objection to the extent it is based on the fact that same evidence was provided in response to the co-defendants, is overruled. To the extent the objection is based on the fact that other discovery methods sought the same evidence, Plaintiff failed to present evidence demonstrating such and the objection is overruled for that reason as well.

Accordingly, as to Plaintiff Machado's responses to Defendant Cars to Go Towing, Inc.'s Special Interrogatories the court makes the following rulings:

Request Nos. 1-7, 9, 10, 12, 15-29, 31-41, and 43: Plaintiff Machado largely maintains that these requests are duplicative, vague, and would necessitate a complication of abstracts, compilations or a summary of documents. This court overrules Plaintiff's objections and orders Plaintiff to provide code-compliant responses by January 30, 2026.

Request Nos. 8, 11: Plaintiff maintains that they would necessitate a complication of abstracts, compilations or a summary of documents. These requests seek information as to the nature of the Plaintiff's claims, they do not seek to obtain non-existent compilations of evidence. This court overrules Plaintiff's objections and orders Plaintiff to provide code-compliant responses by January 30, 2026.

Request No. 12, 13: Plaintiff asserts that they cannot provide a response because the term "loan" is not defined. Vague or ambiguous is a valid objection only if the question is wholly unintelligible. Defendant's response in their separate statement offers an explanation for the term "loan" by referencing back to Request No. 1, "Identify the amounts of money that you invested in the company." As such, this court finds Plaintiff Machado's objections to be valid, either the term is too ambiguous for Plaintiff to intelligently respond, or it means the same as defined in Request No. 1 and therefore this would be an example of being duplicative. Objections sustained.

Request No. 42: Plaintiff provided an objection but also provided a substantive response. The court finds the response code-compliant.

C.C.P. § 2030.300(d) mandates sanctions against a party or counsel who unsuccessfully opposes a motion to compel unless substantial justification exists. Sanctions are also authorized under C.C.P. §2023.030 for misuse of the discovery process as defined in C.C.P. § 2023.010. “There is no requirement that misuse of the discovery process must be willful for a monetary sanction to be imposed.” (Cal. Civil Discovery Practice (Cont.Ed.Bar 4th ed. May 2009 update) § 15.94, p. 1440, citing C.C.P., § 2023.030, subd. (a); see 2 Hogan & Weber, Cal. Civil Discovery (2d ed. 2005) Sanctions, § 15.4, p. 15-8 [“Whenever one party's improper actions—even if not ‘willful’—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party” (fn. omitted)]; *Kohan v. Cohan* (1991) 229 Cal.App.3d 967, 971.)

While the court does not find substantial justification for Plaintiff Machado’s failure to provide valid objections or code-compliant responses to some of the requests, the court does find that the excessive request for sanctions, the partial code-compliant response and the documented interactions between counsel warrant a reduction of sanctions. The court orders Plaintiff to pay sanctions in the amount of \$995 by January 30, 2026.

Courtroom Clerk's Session

4. 1:30 PM CASE NUMBER: C23-02259
CASE NAME: JOHN RICCABONA VS. SERGIO HERMOSILLO CASTRO
SETTLEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

Parties are to appear at 1:30 p.m. with clients and/or authorized person to engage in good faith settlement discussions.